

The Personal Data Protection Agency has imposed administrative monetary fines on data controllers totaling nine in number, amounting to 51,000 euros for violations of the provisions of the General Data Protection Regulation and the Law on the Implementation of the General Data Protection Regulation.

****Administrative monetary fines for violations of the provisions of the General Data Protection Regulation****

Two administrative monetary fines were imposed on data controllers in the gambling and betting sector in the amounts of 15,000 and 20,000 euros for unlawful processing of personal data through cookies. The data controllers collected and processed personal data of respondents via cookies without allowing respondents to provide or withdraw consent for the processing of personal data through cookies in an informed and voluntary manner (i.e., cookies – small files that the Internet browser stores on a computer, mobile device, or any other device that the respondent used to visit the websites, thereby remembering and tracking their further actions on the websites, which processing also relates to aspects of personal data), thereby violating Article 6, paragraph 1, point a) and, in connection with that, Article 7 of the General Data Protection Regulation. In situations where the processing of personal data is based on consent and has multiple purposes, the text of the consent (in this case, the cookie banner) must be presented in a way that can be clearly distinguished from other purposes, in a comprehensible and easily accessible form using clear and simple language. Since in this case the data controllers did not separate the so-called cookie banner and did not allow respondents to clearly give consent for different purposes (marketing, analytics/statistics), it is clear that the consent did not meet the legal requirements and therefore was not valid as a legal basis.

Upon reviewing the Privacy Policies of both data controllers, it was determined that the document in question does not contain information about the legal basis, groups/types of cookies, the function/purpose of each cookie, the retention period of cookies, i.e., the data controllers did not adequately inform respondents about the processing of personal data, thereby violating Article 13, paragraphs 1 and 2 of the General Data Protection Regulation. Thus, regarding the processing through cookies, the data controllers did not inform respondents in accordance with the principle of transparency, and in this way, respondents (visitors to the websites) were deprived of information about the processing of their data.

Additionally, the data controller who was fined 20,000 euros processed personal data of respondents at the very moment the webpage was loaded, while they had not yet

given their consent for the collection of certain cookies, which was unfair, as respondents were not even aware that their personal data was being collected at the moment of accessing the webpage. This resulted in unfair processing of personal data of respondents, which is contrary to the principle of lawful, fair, and transparent processing of personal data as stated in Article 5, paragraph 1 of the General Data Protection Regulation.

****Administrative monetary fines for violations of the Law on the Implementation of the General Data Protection Regulation****

Seven administrative monetary fines totaling 16,000 euros were imposed on data controllers for failing to mark the object under video surveillance, i.e., the marking is not visible upon entering the recording perimeter and/or the marking does not contain all relevant information. Individual fines ranging from 500 euros to 4,000 euros were imposed on hotels, catering establishments, and stores.

Namely, according to Article 27, paragraph 1 of the Law on the Implementation of the General Data Protection Regulation, the data controller is obliged to mark that the object or individual room within it and the external surface of the object is under video surveillance, and the marking must be visible no later than upon entering the recording perimeter.

Paragraph 2 of the aforementioned article stipulates that the notification must contain all relevant information in accordance with the provision of Article 13 of the General Data Protection Regulation, and especially a simple and easily understandable image along with text providing respondents with the following information:

- that the area is under video surveillance
- information about the data controller
- contact details through which the respondent can exercise their rights

More about the processing of personal data through cookies and video surveillance can be found at the link:

<https://azop.hr/vodici-i-promotivni-materijali-o-zastiti-osobnih-podataka/>